

SENATE No. 2625

Senate, October 20, 2025 -- Substituted as a new draft (Senator Keenan) for the Senate Bill providing for the issuance of revenue bonds for the construction and reconstruction of telecommunications facilities by the city of Quincy (Senate, No. 1450).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the issuance of revenue bonds for the construction and reconstruction of telecommunications facilities by the city of Quincy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the city of
2 Quincy, when authorized by a two-thirds vote as defined in section 1 of chapter 44 of the
3 General Laws, may borrow money by the issue of revenue bonds or notes to pay costs of
4 designing, engineering, constructing and reconstructing telecommunications facilities, which
5 revenue bonds shall be limited obligations of the city, payable from rates and charges collected
6 by the city for the provision of telecommunications services. Such project costs may include all
7 costs, whether incurred prior to or after the issue of bonds or notes pursuant to this act, of
8 establishing, purchasing, extending or enlarging a municipally owned telecommunications
9 system, remodeling, reconstructing or making extraordinary repairs to a municipally owned
10 telecommunications system and for the payment of financing charges, interest prior to and during
11 the carrying out of any project and for a reasonable period thereafter, planning, engineering,
12 finance advisory and legal services, administrative expenses, the funding of notes issued for

project costs as provided under this act, such reserves for debt service or other capital or current expenses as may be required by a trust agreement or resolution securing any such notes or bonds and all other expenses incidental to the determination of the feasibility of any project or to carrying out the project or to placing the project in operation. Bonds or notes issued pursuant to this act shall not be subject to the limitation on indebtedness set forth in section 10 of chapter 44 of the General Laws.

SECTION 2. The bonds of each issue shall mature not later than 30 years from their dates of issue and may be made redeemable before maturity with or without premiums. Subject to this act, the treasurer shall determine the date of the bonds, their denomination, the place of payment of the principal and interest, which may be at any bank or trust company within or without the commonwealth, their interest rate, including rates variable from time to time as determined by such index, banker's loan rate or other method, maturity, redemption privileges, if any, and the form and other details of the bonds. The bonds shall be signed by the treasurer of the city of Quincy and shall bear the seal of the city or a facsimile thereof. The city may sell its bonds in such manner, either at public or private sale, for such price, at such rate of interest, or at such discount in lieu of interest, as the officers authorized to issue the same shall determine.

SECTION 3. Bonds issued under this act may be secured by a resolution or by a trust or security agreement between the city of Quincy and a corporate trustee, which may be any trust company or bank having the powers of a trust company within or without the commonwealth, or by a trust or security agreement directly between the city and the purchasers of the bonds and such resolution or trust or security agreement shall be in such form and executed in such manner as may be determined by the authorized officers. Such trust or security agreement or resolution may pledge or assign, in whole or in part, the revenues held or to be received by the city from or

on account of the operation of its telecommunications facilities, and any contract or other rights to receive the same, whether then existing or thereafter coming into existence and whether then held or thereafter acquired by the city, and the proceeds thereof. Such trust or security agreement or resolution may contain such provisions for protecting and enforcing the rights, security and remedies of the bondholders as may, in the discretion of the authorized officers, be reasonable and proper and not in violation of law. Without limiting the generality of the foregoing, such agreement or resolution may include provisions defining defaults and providing for remedies in the event of default, which may include the acceleration of maturities, and covenants setting forth the duties of, and limitations on, the city in relation to the custody, safeguarding, investment and application of monies, the issue of additional or refunding bonds, the fixing, revision and collection of fees, charges and other revenues, the use of any surplus bond proceeds, the establishment of reserves, the construction and operation of the telecommunication facilities and the making and amending of contracts relating to the bonds. It shall be lawful for any bank or trust company to act as a depository or trustee of the proceeds of bonds, revenues or other monies under a trust or security agreement or resolution and to furnish such indemnification or to pledge such securities and issue such letters or lines of credit or other credit facilities as may be required by the city acting hereunder. Any such trust or security agreement or resolution may set forth the rights and remedies of bondholders and of the trustee and may restrict the individual right of action by bondholders.

SECTION 4. Any pledge of revenues, contract or other rights to receive revenues, or the proceeds thereof, made by the city of Quincy under this act shall be valid and binding and shall be deemed continuously perfected for the purposes of the Uniform Commercial Code and other laws from the time when the pledge is made. The revenues, monies, rights and proceeds so

pledged and then held or thereafter acquired or received by the city shall immediately be subject to the lien of such pledge without any physical delivery or segregation thereof or further act and the lien of such pledge shall be valid and binding against all parties having claims of any kind in tort, contract or otherwise against the city, irrespective of whether such parties have notice thereof. The resolution, any trust or security agreement and any other agreement by which a pledge is created shall be filed in the records of the city but shall not need to be filed or recorded in any other manner, including under the Uniform Commercial Code.

SECTION 5. The city of Quincy may issue refunding bonds for the purpose of paying any of its bonds issued pursuant to this act at or prior to maturity or upon acceleration or redemption. Refunding bonds may be issued in such amounts and at such times prior to the maturity or redemption of the refunding bonds as the treasurer, with the approval of the mayor, shall determine. The refunding bonds may be issued in sufficient amounts to pay or provide the principal of the bonds being refunded, together with any redemption premium on the bonds, any interest accrued or to accrue to the date of payment of such bonds, the expenses of issue of the refunding bonds, the expenses of redeeming the bonds being refunded and such reserves for debt service or other expenses from the proceeds of such refunding bonds as may be required by a trust or security agreement or resolution securing the bonds.

SECTION 6. In addition to other security provided herein or otherwise by law, bonds or notes issued by the city of Quincy pursuant to this act may be secured, in whole or in part, by insurance or by letters or lines of credit or other credit facilities issued by any bank, trust company or other financial institution, within or without the commonwealth, and the city may pledge or assign any of the rates and charges collected by the city for the provision of

telecommunications services as security for the reimbursement by the city to the issuers of such letters or lines of credit, insurance or credit facilities of any payments made thereunder.

SECTION 7. Any debt service fund, construction fund, debt service reserve fund, depreciation reserve fund or other fund established in connection with the issuance of bonds under this act shall be kept separate from other monies of the city of Quincy. The monies deposited in any such funds, together with income derived from any investments held as part of such funds, shall be expended without further authorization or appropriation as provided for in the trust or security agreement or resolution establishing such funds.

SECTION 8. All monies received pursuant to this act, whether as proceeds from the issue of bonds, as revenues or otherwise, shall be deemed to be trust funds to be held and applied solely as provided in this act.

SECTION 9. This act shall be deemed to provide an additional and alternative method for the effectuation of the purposes of this act and shall be construed to be supplemental to, and not in derogation of, powers otherwise conferred by law on the city of Quincy; provided, however, that insofar as the provisions of this act are inconsistent with the provisions of any general or special law, administrative order or rule, the provisions of this act shall be controlling.

SECTION 10. In case any officer whose signature or a facsimile of whose signature shall appear on any bonds or notes issued under this act shall cease to be such officer before the delivery thereof, such signature or such facsimile shall nevertheless be valid and sufficient for all purposes the same as if he or she had remained in office until after such delivery.

SECTION 11. An owner of real property located in the city of Quincy may enter into an agreement with the city to pay a fixed assessment for a right of access of the real property to 1 or

more service connections to the city's telecommunications facilities. A notice of such agreement, or of multiple agreements, shall be recorded as a betterment and except as otherwise set forth herein, or by the agreement of the parties, shall be subject to the provisions of chapter 80 of the General Laws provided, however, that for purposes of this section, a lien shall take effect by operation of law on the day immediately following the due date of such assessment or apportioned part of such assessment and such assessment may bear interest at a rate determined by the city treasurer or by agreement with the property owner at the time such agreement is entered into between the city and the property owner. In addition to remedies available under said chapter 80, the property owner shall be personally liable for payment under the agreement; provided, however, that upon assumption of such personal obligation to a purchaser or other transferee of all of the original owner's interest in the property at the time of conveyance and the recording of such assumption, the owner shall be relieved of such personal liability. An agreement between a property owner and the city pursuant to this act shall not be considered a breach of any limitation or prohibition contained in a note, mortgage or contract on the transfer of an interest in property.

Notwithstanding chapter 183A of the General Laws, the organization of unit owners of a condominium may petition the city to enter into an agreement pursuant to this act. Such agreement shall: (i) be approved by a majority of the unit owners; (ii) include an identification of the units and unit owners subject to the agreement; and (iii) include a statement by an officer or trustee of the organization of unit owners certifying that the required number of unit owners have approved the agreement. As between the affected unit owners and the city, such certification shall be conclusive evidence of the authority of the organization of unit owners to enter into the agreement. A notice of such agreement shall be recorded as a betterment in the registry of deeds

or registry district of the land court where the master deed is recorded and shall be otherwise subject to chapter 80 of the General Laws as provided for in this act. The assessment under such agreement may be charged or assessed to the organization of unit owners but shall not constitute an assessment of common expenses; provided, however, that the allocable share of the assessment shall attach as a lien to the units identified in the recorded notice and the owners of such units shall also be personally liable for their allocable share of the assessment as provided for in this section.

The assessment charged pursuant to all agreements authorized under this act shall be a uniform charge for each service connection allowed under such agreement and the city may determine from time to time to increase the charge, based upon generally accepted consumer price indexes. The assessment charged pursuant to an agreement shall remain unchanged for the term of that agreement. Revenues received by the city from charges assessed under this act shall be used first to pay amounts due under long-term obligations of the city related to the city's telecommunications facilities and any remaining receipts shall be used to offset operational costs of the city's telecommunications facilities.

SECTION 12. This act shall take effect upon its passage.